IN THE BUSINESS AND PROPERTY COURTS IN LEEDS

TECHNOLOGY AND CONSTRUCTION COURT (KBD)

Claim No. BL-2025-LDS-000241

BEFORE HIS HONOUR JUDGE PRESTWICH sitting as a Judge of the High Court

BETWEEN:

MARLDALE AGGREGATES LIMITED

Claimant

- and -

CRAYFORD PLANT ENGINEERING LIMITED

Defendant

CASE MANAGEMENT ORDER

UPON the first Case Management Conference held on 18 June 2025

AND UPON hearing counsel for the Claimant and counsel for the Defendant

IT IS ORDERED that:

1. Disclosure. The parties shall give Extended Disclosure by Model C (request-led search-based disclosure) in respect of the Issues for Disclosure set out in the agreed List of Issues, by 4pm on 25 July 2025.

2. Single Joint Expert. There shall be a single joint expert in the field of mechanical/plant engineering to report on the cause of the failures of the jaw-crusher assembly and the Plant's failure to achieve the warranted throughput. The parties shall agree the identity of the expert by 11 July 2025, failing which either party may apply.

3. The single joint expert shall be instructed by 18 July 2025 and shall report by 19 September 2025. The parties shall have leave to put written questions by 3 October 2025.

4. Witness statements. The parties shall exchange signed statements of witnesses of fact by 4pm on 8 August 2025.

5. Schedules. The Claimant shall serve an updated Schedule of Loss, and the Defendant a Counter-Schedule, by 22 August 2025.

6. Costs budgeting. The parties shall file and exchange Precedent H costs budgets by 1 August 2025; a Costs and Case Management Conference is listed for 16 October 2025 with a time estimate of 2 hours.

7. Trial. The matter is listed for trial in a window commencing 9 February 2026 with an estimated length of 5 days, to be heard by a TCC judge.

8. Costs of the CMC shall be costs in the case.

Dated: 18 June 2025

By the Court